

**THE
SENTENCE
AND
AFFIDAVIT
OF
JOHN CHURCH**

by

Joseph A. Dowling

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AND AFFIDAVIT OF JOHN CHURCH, THE OBELISK PREACHER ***

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**THE
SENTENCE
AND
AFFIDAVIT
OF
JOHN CHURCH,
The Obelisk Preacher,**

FOR AN ATTEMPT TO COMMIT AN
UNNATURAL CRIME
ON ADAM FOREMAN, AT VAUXHALL.

TOGETHER WITH
JUDGE BAYLEY'S IMPRESSIVE ADDRESS
TO THE PRISONER, AT FULL LENGTH.

AT THE COURT OF KING'S BENCH, NOV. 24, 1817.

TAKEN IS SHORT-HAND
By Joseph A. Dowling,
OF CLEMENT'S INN.

London:
PRINTED AND PUBLISHED BY HAY AND TURNER,

11, NEWCASTLE STREET, STRAND.

1817.

PRICE THREEPENCE.

SENTENCE ON JOHN CHURCH, THE OBELISK PREACHER.

COURT OF KING'S BENCH, NOVEMBER 24, 1817.

THIS morning the celebrated JOHN CHURCH was brought up before the Court, for the purpose of receiving its judgment, in pursuance of his conviction at the last Croydon Assizes, for an attempt to commit an unnatural crime.

During the greater part of the morning the Court was occupied by passing judgments on offenders against the Excise Laws; and it was not until one o'clock, that the Court proceeded to pronounce sentence on the above defendant.

LORD ELLENBOROUGH, who had tried the case, then read over all his notes taken on the trial, and the defendant then handed in an affidavit to the officer of the Court, for the purpose of inducing their Lordships to pass a lenient sentence on him.

This affidavit, after reciting his conviction at the above-mentioned Assizes, on the 10th of August last, complained of the title pages of several accounts of his trial, which had been printed and published, and which were strongly calculated to excite popular prejudice against him. It stated that the defendant was a married man and had several children, and that his wife had kept a school for the instruction of young females, at Hammersmith, and while she so kept such school, she received the following anonymous letter.

“London.

“Madam,

“If you have any respect for the children who are under your care, you will remove from the house you are now in, that they may not be present at the punishment of your husband.

“Believe me your Friend.”

And that soon after this, a mob assembled before the house of the defendant, with marrow-bones and cleavers, an effigy of the said defendant, and a transparency; and, after having lighted a fire before his door, the flames of which ascended as high as the windows of the first floor, they burnt his effigy in that fire; they then broke the defendant’s windows, and acted otherwise riotously, by which the defendant was compelled to leave Hammersmith. In consideration of these facts, the affidavit went on to pray a lenient punishment from the Court.

Mr. BARLOW (*to the defendant*)—Do you wish to say any thing for yourself in addition to this affidavit?

The DEFENDANT.—No, Sir.

Mr. MARRYATT now addressed their Lordships in the manner following:—

My Lords,—The less I call your attention to the nature of the offence imputed to the defendant, I think it will be the better. I shall merely direct your attention to the character and situation of the defendant; for when a man in his situation of assumed piety, makes it the mask for extraordinary delinquency, I submit to your Lordships that he becomes an object for extraordinary punishment.

Your Lordships have found by the report, and also by the affidavit of the defendant himself, that reports of a similar description against his character had gone abroad. I do not know what those reports precisely were, and I do not mean anything further by alluding to them, than to state what Mr. Patrick said to him on this occasion, namely, that he should think himself at liberty to believe all that had been previously said against him.

The defendant complains in his affidavit of the popular opprobrium excited against him, by various publications of his trial, and other matters relative to him. It is really almost impossible to check the public feeling in cases of this nature, and nothing is imputed in this affidavit either to the prosecutor

or any person connected with the prosecution. They are not responsible for the marrow-bones and cleavers, for the effigy, or for any of the publications.

I should observe, that although the prosecutor did not go before the Magistrate at the very period when this occurred, yet he did not make the least concealment of the story in any way; for it appears, by the testimony of Mr. Thomas, that it had reached his ears in two or three days after it had happened, and that he went and called on Church on the 9th of October. It appears that the matter became perfectly notorious; because, in a very few days afterwards, this letter was written to him by Mrs. Hunter, which notified to him that she would no longer be one of his hearers.

There is only one circumstance in that letter to which I will advert. He states, that he is a child of peculiar Providence, corrected by the hand of the Almighty, who will resent every attempt to correct his offences from any other quarter. I do not think that your Lordship will be intimidated from administering to him a due portion of punishment for his offence, by any such intimation as that letter holds out.

Mr. Justice BAYLEY then addressed the defendant as follows:—The painful part of my duty is, to pass on you the sentence of this Court, for the enormous crime of which you stand convicted. It is not only painful when I think that you are so far advanced in years, and that you were in a situation which it became your bounden duty to reflect on what would become of you, as well as others, hereafter, but also when I reflect, that when it was your duty to guide the course of others through life, you took advantage of the confidence reposed in you, to put young people materially off their guard, who would expect, from your sanctity of manners, that nothing was to be feared.

Your attempt, in this instance, was upon a lad, very young, and if he had been once drawn into the commission of that offence, which you attempted to commit on him, though young, what must have been the consequence? What course of life would he not be afterwards induced to follow by you?

The nature of that crime raises in all those who hear me the greatest detestation and abhorrence—abhorrence indeed, when it is committed by a

married man, and one in that sacred situation in which you have been (unfortunately for mankind) placed.

Your affidavit states, that, since the time of your conviction, there have been publications reflecting on your character. The Court does not approve of any misconduct in any one, and, however the natural indignation of the public may be called forth by the enormities which you have committed, the Court would of course apportion such punishment to any parties justly complained of, as the nature of the case, under all the circumstances, might demand. But that does not diminish your GUILT—your GUILT stands in a very high and prominent point of view, and it is necessary for the Court to pass on you a severe punishment.

If you have the feelings you ought to have, and if your life has not been a life of hypocrisy throughout, you will try to obtain forgiveness for this high offence, and reflect that it is fortunate you did not carry your offence to its completion.

The sentence of the Court upon you is, that you be imprisoned in his Majesty's gaol at Newington for TWO YEARS; and at the expiration of that term, that you find surety for your good behaviour, yourself in the sum of 500*l.* and two sureties respectively in the sum of 100*l.* for the term of five years, and that you be further imprisoned until such securities are found.

During the passing of this sentence, as well as through the whole proceeding, the defendant was completely unmoved, though his lordship seemed deeply affected by the enormity of his crime. He was conducted out of Court in custody of the Marshal of the Marshalsea, for the present, amidst the groans and hisses of indignation that burst forth from the immense crowd.

The following is a perfect copy of Church's letter to Mrs. Hunter, adverted to by Mr. MARRYATT in his address to the Bench:

Oct. 6, 1816.

“DEAR MRS. HUNTER—My heart is already too much affected. Your letter only added affliction to my bonds; but I forbear. I would hare

called on you this morning, but I was too low in mind to speak to any friend but Jesus. There I am truly comfortable. Pardon me. But I make no remarks on what you have been told. I must bear it. Though I am able to contradict three things, I would rather not. Mr. and Mrs. Patrick have always dealt kindly to me. I am only grieved that dear Mrs. P. whom I really love, that she should try to injure me in the estimation of those who are real friends to my dear children. The thought affects me. Why hurt my poor family? But I am too much depressed to enlarge. I shall never forget their kindness. God will reward them, as he has many who have dealt well to me. But he will resent cruelty in those who have and are still trying to degrade me. Mrs. P. will live to see it. Dear Mrs. Hunter, I am grieved at heart. I cannot relieve your mind. I am truly sorry to lose you as an hearer because your soul has been blessed, and you know both the plague of the heart and the value of Jesus. May he be increasingly precious to you!—in his person, love and grace. Farewell, my dear kind friend. The Lord Jesus will reward you for your love to me and kindness to mine. God is not unrighteous to forget your work of faith and labour of love. With many tears I write this. May we meet in glory, when no enemy shall distress my mind, nor sin, nor death shall part us more. I need not remind my dear friend that I am a child of peculiar Providence: and that Heart of Eternal Love, and that Arm of Invincible Power, has protected me—has called me to himself—and for every act of straying, will correct me with his own hand; but will resent every other hand sooner or later.

“This you will live to see. Adieu, dear friend: accept the starting tear, and the best wishes of an heart sincere.

“Your’s truly,
“Till we shall meet above.”

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* *
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